

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Estate of Rebecca Ramnarine, Richard Ramnarine, in-	:	
dividually, and as the Administrator of the Estate of	:	Index No. 508709-2014
Rebecca Ramnarine, Abeola Ramnarine,	:	
	:	
Plaintiffs,	:	
-against-	:	Amended Complaint and
	:	Jury Demand
City of New York, New York City Police Department,	:	
Sgt. Raymond Moran, individually and in his official	:	
capacity, Officer Kevin Savary, individually and in his	:	
official capacity, Officers John and Jane Does 1-10,	:	
Individually and in their personal capacity,	:	
Defendants.	:	
	:	
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INTRODUCTORY STATEMENT

This case is about the unlawful acts of the NYPD by which its officers engaged in an unlawful high-speed vehicle pursuit in a residential area without activating their lights and sirens leading to an accident which took the life of nine year old Rebecca Ramnarine.

PARTIES

1. Plaintiff Richard Ramnarine brings this action individually, as the parent of Rebecca Ramnarine, and as the administrator of Rebecca Ramnarine's estate.
2. Abeola Ramnarine is the mother of Rebecca Ramnarine.
3. Estate of Rebecca Ramnarine is the lawfully authorized estate of Rebecca Ramnarine.
4. Defendant City of New York is a municipal entity organized under the laws of the State of New York.

5. Defendant NYPD is a municipal entity created and organized under the laws of the State of New York and is an agency of the City of New York.
6. Kevin Savary is a police officer who is sued in his individual and official capacity and is believed to be stationed at the 69th Precinct in Brooklyn, NY.
7. Raymond Moran is a police officer who is sued in his individual and official capacity and is believed to be stationed at the 69th Precinct in Brooklyn, NY.
8. Officers John and Jane Doe are police officer who are employees of the NYPD and City of New York.

FACTS

9. On approximately May 4, 2014 at Remsen Avenue and Avenue N, in Brooklyn New York, nine year old Rebecca Ramnarine lost her life after a vehicle the police were chasing for allegedly a minor incident crashed into the vehicle she was riding in, taking her life.
10. The NYPD negligently failed to take proper care and follow its own rules prohibiting pursuits when they engaged in a reckless and needless pursuit in a residential neighborhood.
11. Moreover, the Defendant officers failed to activate their lights and sirens during the unlawful chase so as to warn pedestrians and civilians that danger was afoot and to give them an ability to remove themselves form the zone of danger.
12. Richard and Abeola Ramnarine arrived at the scene in time to see their daughter's bloodied body being pulled from the wreckage.

13. They were with their daughter when she later passed away as a result of her injuries.

14. The Defendants unlawfully caused the death of Rebecca Ramnarine

15. Richard Ramnarine is duly appointed administrator of the estate of Rebecca Ramnarine.

First Cause of Action
(Wrongful Death)

16. Plaintiffs re-alleges each and every Paragraph as if alleged herein.

17. The Defendants' actions, as well as inaction, caused the death of Rebecca Ramnarine.

18. In the first instance, the Defendants should have not engaged in a police chase in a densely populated residential area.

19. Moreover, the Defendants failed to activate their lights and sirens so as to warn pedestrians and civilians that a dangerous police chase was afoot, and that the public should be warned and take the proper precaution.

Second Cause of Action
(Negligence)

20. Plaintiffs re-allege each and every Paragraph as if alleged herein.

21. The Defendants had a duty to protect the public and engage in police activity that does not put the public at grave risk of death or injury.

22. The Defendants breached this duty by improperly, negligently, and unlawfully engaging in a high speed chase in a residential neighborhood, failing to activate their lights and sirens, and pursuing a vehicle at a high rate of speed.

23. The Defendants knew or should have known that the police vehicle pursuit was unlawful and dangerous.

24. The City of New York failed to train, supervise, and monitor its officers, including the Defendant officers, in motor vehicle pursuits and in how to adequately deal with such a situation so as to prevent the aforementioned conduct from occurring.

Third Cause of Action
(Loss of Services, Income, and Consortium)

25. Plaintiffs re-allege each and every Paragraph as if alleged herein.

26. The Defendants' unlawful actions caused the parents of Rebecca to lose her companionship, services, income, and consortium.

27. But for the actions of the Defendants, the parents of Rebecca would enjoy her company and companionship for years to come.

28. The unlawful activity of the Defendants robbed Rebecca's parents of a beautiful and lively child, who brought joy to all who had the fortune of coming across her path.

WHEREFORE, Plaintiff prays that this Court grant judgment to her containing the following relief:

1. An award of compensatory and punitive damages,
2. An award to Plaintiffs of the costs of this action, together with her reasonable attorneys' fees; and
3. Such other and further relief as this Court finds just and proper.

Dated: March 3, 2015

By Plaintiffs' Attorney,
Aymen A. Aboushi
Aymen A. Aboushi, Esquire

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official capacity, Officers John and Jane Does 1-10,	:
Individually and in their personal capacity,	:
Defendants.	:
	:
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TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the Amended Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 5, 2015

s/Aymen A. Aboushi, Esq.
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